

SENATE No. 488

The Commonwealth of Massachusetts

PRESENTED BY:

Jacob R. Oliveira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring the certification of medical directors in skilled nursing facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/30/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/11/2025</i>

SENATE No. 488

By Mr. Oliveira, a petition (accompanied by bill, Senate, No. 488) of Jacob R. Oliveira and Joanne M. Comerford for legislation to require the certification of medical directors in skilled nursing facilities. Elder Affairs.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring the certification of medical directors in skilled nursing facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. For the purposes of this act the following terms shall, unless the context
2 requires otherwise, have the following meanings:-

3 “Certified medical director”, an individual who has been certified as a certified medical
4 director by the American Board of Post-Acute and Long-Term Care Medicine or an equivalent
5 organization, as determined by the department of public health.

6 “Department”, the department of public health.

7 “Medical Director,” is a physician licensed by the Commonwealth and appointed as a
8 medical director of a nursing home pursuant to the requirements of section 483.75 (i) of the CMS
9 Manual 100.07, appendix PP/F501, and any subsequent revisions thereto.

10 “Skilled nursing facility”, a facility that is licensed pursuant to section 71 of chapter 111
11 of the General Laws, which primarily provides inpatient skilled nursing care and related services

to patients who require medical, nursing or rehabilitative services but does not provide the level of care or treatment available in a hospital, including any skilled nursing facility that is operated as a distinct part of an acute care hospital.

SECTION 2. (a) No skilled nursing facility shall contract with a person as a medical director if the person is not, or will not be within 5 years of the date of initial hire as the facility's medical director, a certified medical director, except as set forth in subsection (b).

(b) A medical director already employed in a skilled nursing facility as of January 1, 2027 shall have until January 1, 2030 to become a certified medical director.

SECTION 3. (a) Skilled nursing facilities seeking licensure pursuant to said section 71 of said chapter 111 shall submit to the department all of the following information on its medical director upon its original or renewal application for licensure, said information to be considered a public record:

(1) results of a criminal background check for the medical director;

(2) the medical director's resume; and

(3) proof of the medical director's certification as a certified medical director or, if the medical director is not yet certified, the expected date of certification.

(c) Skilled nursing facilities shall notify the department of any changes in its medical director by submitting the information required in subsection (a) within 10 calendar days of said changes.

(d) All skilled nursing facilities shall submit to the department the information required in subsection (a) no later than June 30, 2027.

SECTION 4. Whoever acts as a certified medical director or represents themselves to be a certified medical director without having been duly certified shall be punished by a fine of not less than \$500. Each day that such person shall act or represent themselves as certified shall constitute a separate violation.

SECTION 5. Skilled nursing facilities licensed pursuant to the provisions of chapter 111 of the general laws as appearing in the 2022 Official Edition shall annually certify to the department of public health under the pains and penalties of perjury the name and contact information for the person designated by said facility as its medical director, and that said director is the primary agent of the facility responsible for (i) implementation of resident care policies, and (ii) the coordination of medical care in said facility.

The facility shall identify specifically how the designated medical director is expected to fulfill their responsibilities to effectively implement resident care policies and coordinate medical care for residents of said facility. The facility shall give evidence at the time of any inspection by the department that all responsibilities of said director are effectively performed to ensure that residents attain or maintain their highest practicable physical, mental, and psychosocial well-being

SECTION 6. The medical director designated in accordance with the provisions of this act, shall report to the department of public health whenever in their opinion the management or ownership of the facility has failed to fully address any issue designated by such medical director which appears to be harmful or potentially harmful to one or more residents or staff, such report to be considered public record.

54 SECTION 7. Said medical director designated in accordance with the provisions of this
55 act, shall report to the resident and family council of such facility, if any, not less than twice a
56 year. In the absence of a resident and family council, the medical director shall report annually
57 to the department such information as the department, by regulation, believes shall provide
58 evidence of patient-centered care, quality and safety.